

Scope

This policy applies to all individuals working at all levels and grades within the Company, including directors, senior managers, officers, employees (whether permanent, fixed-term or temporary), trainees, seconded staff, homeworkers, casual workers, agency staff, volunteers and interns. However, we also expect that our all our business partners globally conduct their business ethically and that they too comply with this policy.

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1 Policy Statement

- 1.1 It is our policy to conduct all our business in an honest and ethical manner. We take a zero-tolerance approach to bribery, corruption and fraud. We are committed to acting professionally, fairly and with integrity in all our business dealings and relationships. Wherever we operate we implement and enforce effective systems to counter bribery, corruption and fraud.
- 1.2 This policy applies to the ***** group of companies* including their subsidiaries and affiliates, to conduct its business in accordance with all applicable laws and regulations. ***** is fully committed to installing a strong anti-corruption culture and compliance with all anti-bribery legislation relevant to countering bribery, corruption and fraud in all the jurisdictions in which we operate. This includes: the US Foreign Corrupt Practices Act, and the United Kingdom Bribery Act 2010.
- 1.3 The purpose of this Anti-Bribery and Foreign Corrupt Practices Act Policy ("Policy") is to:
- (a) Set out our responsibilities and of those working for us, by observing and upholding our position on bribery, corruption and fraud; and
 - (b) Provide information and guidance to those working for us on how to recognize and deal with bribery, corruption and fraud issues.
- 1.4 Bribery, corruption and fraud are punishable for individuals by imprisonment and if we are found to have taken part in corruption, we could face an unlimited fine, be excluded from tendering for public contracts and face damage to our reputation. We therefore take our legal responsibilities very seriously.
- 1.5 In this Policy, third party means any individual or organization you come into contact with during the course of your work for us, and includes actual and potential clients, customers, suppliers, country representatives, brokers, distributors, business contacts, agents, advisers, and government and public bodies, including their advisors, representatives and officials, politicians and political parties.

2 Who is governed by the policy?

This Policy applies to all individuals working at all levels and grades within the Group globally, including directors, senior managers, officers, employees (whether permanent, fixed-term or temporary), trainees, seconded staff, homeworkers, casual workers, agency staff, volunteers and interns. We also expect that all of our business partners globally conduct their business ethically and that they too comply with this Policy. It must be a term of our contracts with them that they adhere to the Policy.

3 What is bribery?

A bribe is: an inducement or reward offered, promised or provided in order to gain any commercial, contractual, regulatory or personal advantage. It is important to appreciate that it is not only a criminal offence to offer a bribe, but also to request, agree to receive, or to accept a bribe. To be clear, it does not matter whether you are the person giving the bribe or receiving it, you commit a criminal offence either way.

(a) Example: Offering a bribe

You offer a broker or underwriter a financial reward or other inducement if they obtain business for us from an insurance company.

(b) Example: Receiving a bribe

A supplier gives your nephew a job but makes it clear that in return they expect you to use your influence in our organization to ensure we continue to do business with them.

(c) Example: Bribing a foreign official

You arrange for the business to pay an additional payment to a foreign official – perhaps an employee of the military establishment in an overseas location – to secure speedy access to a military site where an incident has occurred. The offence of bribing a foreign public official has been committed as soon as the offer is made. This is because it is made to gain a business advantage for us. We may also be found to have committed an offence.

3.1 Anti-Bribery Provisions of the Foreign Corrupt Practices Act

(a) The Foreign Corrupt Practices Act (“FCPA”) generally applies to all US corporations, partnerships and other business organization (generically, a “company”), as well as all persons acting on behalf of those entities. The FCPA applies to *****, its corporate affiliates and subsidiaries, as well as their officers, directors, agents and shareholders.

(b) The FCPA prohibits any payment or offer of payment to a “foreign official” for the purpose of influencing that official to assist in obtaining or retaining business or any other advantage for a company. “To obtain business or any advantage” includes, for example, a reduction in taxes, a favourable change in regulations, tolerance of non-compliance with local rules, or other favours or preferential treatment. The business to be obtained or retained does not need to be with a foreign government or foreign government.

(c) The FCPA applies to any act or event that is “in furtherance of” a payment to a foreign official. Further, the “payment” clause of the FCPA is broadly phrased. It covers not only the actual payment of money but also an offer, promise or authorization of the payment of money and an offer, gift, promise or authorization of the giving of “anything of value.” Even if the improper payment is not made, just offering it violates the FCPA.

Similarly, instructing, authorizing, or allowing a third party to make a prohibited payment on the Group’s behalf, ratifying a payment after the fact, or making a payment to a third party knowing or having reason to know that it will likely be given to a government official constitute FCPA violations. “Anything of value” includes not only cash and cash equivalents, but also gifts, entertainment, travel expenses, accommodations, and anything else of tangible or intangible value.

d) The FCPA applies to payments to foreign officials. A “foreign official” means any officer or employee of a foreign government, regardless of rank, employees of government-owned or government-controlled businesses, foreign political parties, party officials, candidates for political office, and employees of public international organizations (such as the United Nations or World Bank).

4 What is Fraud?

“The deliberate and dishonest withholding/misrepresentation of material information to gain financial advantage.” This includes deliberate false representation, or the failure to disclose material information. Under criminal Law, fraud is defined by the Fraud Act 2006 under various categories, the most prominent being pursuant to Section 2 of the Act, Fraud by false representation. The Act makes it clear that fraud of this nature is defined by a deliberate false representation with an intention to make a gain (or cause a loss to another). Prior to enactment of the Fraud Act, fraud was not defined by any specific section of the law, but was generally considered as ‘theft by deception’, under the Theft Act 1968, which classified the crime by dishonestly obtaining property belonging to another – ergo; for a ‘fraud’ to have taken place, the crime must be complete, i.e. the fraudster had received property (money, goods, or services). The implementation of the Fraud Act 2006 very clearly overrides this position, and as noted, it is the mere intent to make a gain that is required for a person to be guilty of such an offence, where such intent goes hand-in-hand with a dishonest representation.

Fraud Exposure and Risk Management

We believe that most claims are genuine and most claimants are honest, therefore our counter fraud screening seeks to identify the valid claims quickly, enabling those to be fast-tracked to settlement. For those where our risk indicators have been triggered and subsequent review has identified valid reason(s) for concern, we will focus appropriate specialist resource to consider next steps and whether the concerns raised can be satisfied by further questioning and/or if the claims require investigation.

A fraudulent claim may be an entirely isolated incident committed by:

- an opportunistic individual;
- organised crime;
- or anywhere in between.

The identification of fraud concerns can arise at any time in the lifecycle of a claim. Operating systems in place ensure that our adjusters review our generic and product specific risk indicators regularly and at certain key trigger points. The objectives of these regular reviews are wide ranging and include to:

- Improved fraud identification
- Highlight areas of the claim that may require specific questioning
- Identify any need for additional investigation
- Suggest ways that may remove the suspicions and concerns that have arisen
- Increase staff awareness to the ongoing potential for fraud
- Reduce the possibility of the payment of false claim

5 Particular risks for our business

5.1 It is impossible to outline every scenario in which there is a risk of bribery and corruption occurring, but we attempt in this Policy to alert employees and those we do business with to those areas where we believe that the greatest risks are present:

(a) **Brokers, underwriters and other business introducers** - brokers and underwriters are frequent introducers of business to us. Working with brokers and underwriters of itself is perfectly legitimate. It is a criminal offence for anyone in the Group to bribe brokers and underwriters to put business our way.

(b) **Experts** – in the course of our business, we engage a variety of experts to support the work

we do, for example, materials or environmental experts. Whilst we think it is unlikely any of them would seek to bribe our employees, there is a remote risk that a less scrupulous expert might make such an attempt to secure work from the Group. Any such attempt should of course be declined and reported to the Group General Counsel.

(c) **Public Officials** – it is an offence under the FCPA and Bribery Act to bribe a public official. However, the Act also prohibits bribing a foreign public official. The definition of public officials covers a very wide range of people including officials whether elected or appointed, who hold a legislative, administrative, or judicial position of any kind; officials who perform public functions in any branch of the national, local or municipal government of the country concerned, or who exercise a public function for any public agency or public enterprise. Should you find any official requesting any kind of inducement in order to carry out his or her functions, this should be reported to the Group General Counsel.

(d) **Contractors** - it is possible that a local contractor may try and influence the choice of contractor by offering bribes. Again, any such proposal must be rejected and reported to the Group General Counsel.

(e) If you have any concerns that dishonest practices are occurring, report them. Do not feel pressured to stay silent and on no account offer or accept bribes.

6 Gifts and hospitality

- 6.1 A gift or the receipt of hospitality can be construed as a bribe, even if that was not the intention and no business, or favours were promised or sought in return. Please refer to the following definitions for purposes of this Policy:
- (a) **Gift:** A gift is the giving of an item to someone without the expectation of payment or reciprocity.
 - (b) **Entertainment:** The act of providing someone or being provided with amusement or enjoyment without the expectation of payment or reciprocity.
- 6.2 This Policy does not prohibit normal and appropriate entertainment (given and received) to or from third parties. However, in all cases it must be reasonable, proportionate, open, properly accounted for and not made with a view to buying business, or as any kind of inducement or sweetener.
- 6.3 If giving a gift, you should seek approval from your line manager and understand any applicable local policy and custom before you make any gift to a third party. In order for any gift to be approved, it must meet the following requirements:
- (a) It is not made with the intention of influencing a third party to obtain or retain business or a business advantage, or to reward the provision or retention of business or a business advantage, or in explicit or implicit exchange for favours or benefits;
 - (b) It complies with local law. This places a responsibility on you and the Group to check out that the making of a gift is lawful in the country concerned;
 - (c) It is given in the Group's name, not in your name;
 - (d) It does not include cash or a cash equivalent (such as gift certificates or vouchers);
 - (e) It is appropriate in the circumstances. For example, in the US and UK it is customary for small gifts to be given at Christmas time whereas at other times, the gift may not appear appropriate;
 - (f) Taking into account the reason for the gift, it is of an appropriate type and value and given at an appropriate time. As a general rule, the Group does not permit the giving of gifts that exceed USD \$100 or its equivalent currency amount in value. In exceptional cases, where a gift of a higher value is considered appropriate, this will require the written approval of the Group General Counsel.
 - (g) It is given openly, not secretly and it is reported to the Group General Counsel who will keep a proper record of the gift in a hospitality and gifts register.
 - (h) Gifts should not be offered to, or accepted from, government officials or representatives, or politicians or political parties.

- 6.4 We appreciate that the practice of giving business gifts varies between countries and regions and what may be normal and acceptable in one region may not be in another. The test to be applied is whether in all the circumstances the gift is reasonable, proportionate, and justifiable and made in good faith. The intention behind the gift must always be considered.
- 6.5 In all cases where you receive a gift, this must be reported to your line manager. If you or your line manager reasonably believes the gift to have a value in excess of USD \$100 or its currency equivalent, the gift should be declined and reported to the Group General Counsel.
- 6.6 If you have the slightest concern that a gift is being made to you to induce you to act in a particular way, you should not accept the gift and should report your concerns to the Group General Counsel.
- 6.7 Although we have set out above approximate limits for the value of gifts, you should also beware of giving or receiving repeated, small gifts, which cumulatively may be being offered to induce favours. This is the reason why all gift(s) with a cumulative value over USD \$100 or the local equivalent are required to be reported to the Group General Counsel and rejected under this Policy.
- 6.8 Any corporate entertainment we offer should be proportionate, reasonable, and appropriate to the circumstances and offered in good faith. It should not in any way be intended to buy any advantage for *****. By way of example, taking a client or business contact out for lunch, or to a sports match or to a theatre outing will generally be considered proportionate and appropriate. A modest celebration to celebrate the completion of a transaction or a successful project would also be generally acceptable. At the other extreme, paying for a client or business contact to fly first class to the UK and then arranging an all-expenses paid trip charged to ***** would typically be regarded as excessive.
- 6.9 All client entertaining should be agreed with your manager in advance explaining the rationale and the nature of the hospitality you are intending to provide and must be in line with applicable local policy or custom. After the event, you should request re-imbursement in the usual way by completing an expenses report, setting out the nature of the hospitality (e.g. "restaurant meal at [Name] restaurant"), the name of person(s) entertained and the date and attach the supporting receipts. ***** Expenses Policy is relevant and adequate in terms of ensuring that all details are properly reported and agreed.

It is acknowledged that from time to time, gaining pre-authorization may not be practical given the often-ad hoc nature of our business. Where this is the case, you should advise your line manager at the earliest opportunity.

7 What is not acceptable?

It is not acceptable for you (or someone on your behalf) to:

- (a) Give, promise to give, or offer, a payment, gift or entertain with the expectation or hope that a business advantage will be received, or to reward a business advantage already given;
- (b) Give, promise to give, or offer, a payment, gift or entertain a government official, agent or representative to "facilitate" or expedite a routine procedure or obtain a license or secure access to a crash site or obtain some other advantage;
- (c) Accept payment from a third party that you know, or suspect is offered with the expectation that it will obtain a business advantage for them;
- (d) Accept a gift or any form of entertainment from a third party if you know or suspect that it is offered or provided with an expectation that a business advantage will be provided by us in return;
- (e) Engage in any activity that might lead to a breach of this Policy.

8 Facilitation payments and kickbacks

- 8.1 We do not make, and will not accept, facilitation payments or "kickbacks" of any kind. Facilitation payments are typically small, unofficial payments made to secure or expedite a routine government action by a government official. If a request for a payment of this type is made to you it should be reported immediately to the Group General Counsel.
- 8.2 If you are asked to make a payment on our behalf, you should understand what the payment is for and whether the amount requested is proportionate to the goods or services provided. You should always ask for a receipt which details the reason for the payment. If you have any suspicions, concerns or queries regarding a payment, you should raise these with the Group General Counsel.
- 8.3 Kickbacks are typically payments made in return for a business favour or advantage. All workers must avoid any activity that might lead to, or suggest, that a facilitation payment or kickback will be made or accepted by us.

9 Donations

- 9.1 We do not make contributions to political parties. Therefore, a request for such a donation from a business partner or client should be regarded with suspicion and reported to the Group General Counsel. In some countries, political donations can be used as a front for bribery.
- 9.2 ***** does occasionally make charitable donations, but only where such donations are legal and ethical under local laws and practices and only if a member of the management team has sanctioned the donation. Donations of any kind must also be approved by the Group General Counsel.
- 9.3 Such donations must never be made in an attempt to influence any decision or gain a business advantage and are always publicly disclosed.
- 9.4 The General Counsel will keep records of all donations.

10 Representatives and other third parties

How the group can commit an offense by failing to prevent bribery

- 10.1 It is extremely important that everyone working for ***** appreciates that we, as a company, can commit a criminal offence if we fail to prevent bribery by third parties “associated” with us, who are acting on our behalf. Third parties associated with ***** may include our country representatives, agents or brokers we do business with, experts or contractors we engage - even our overseas subsidiaries etc. If those third parties bribe someone in the course of acting on our behalf, ***** may be criminally liable, unless we have in place adequate procedures to prevent bribery. It does not matter that you or senior management in the Group were unaware that the third party was engaging in bribery. Nor is it a defence that bribery and corruption are endemic in the country where we are operating.
- 10.2 **Due Diligence:** we must be very careful that before engaging third parties, such as local representatives, agents, brokers etc. we carry out proper due diligence on them. However, employees and their managers should consider issues such as:
 - (a) Is there a clear business justification for engaging or doing business with the third party? If there is no obvious need, that should act as a red flag.
 - (b) Is there any record of the third party, or anyone connected with it (e.g. a director or officer), having been investigated or charged with any corruption offence?
 - (c) How well known is the third party to *****? Do they come with references from reputable sources? Do we need to investigate them further?
 - (d) Does the relevant third party have the qualifications (if relevant) for the task they are meant to be performing for us? If you don't know, check.
 - (e) Find out if the third party is itself proposing to engage any intermediaries, agents or anyone else to assist it. If so, we need to check them out too. This might arise for example

where local country representatives engage local contractors to clear crash sites or for other business purposes.

(f) Check if the third party is familiar with local anti-corruption rules in the country where they are doing business with us. One indicator of this will be if they have their own anti-corruption measures in place. Look at any such measures, do they appear adequate?

(g) Does the third party have systems in place for checking compliance with its own anti-corruption policies? Have those systems discovered bribery or corruption in the past and if so, do the results suggest that the third party would be an unsuitable business partner for us?

10.3 **Sanction:** once you are satisfied that the third party appears to be an appropriate business partner, you should seek the sanction of your line manager before starting to do business with them as well as complying with any necessary contractual formalities. You are not authorized to contract with third parties before such authorization is forthcoming.

10.4 **Reporting:** details of the business partner should be recorded in our systems and any terms of business approved by your line manager and by the Group General Counsel.

10.5 It is the Group's policy that third parties doing business with us agree to abide by our anti-corruption policies, including this Policy and before contracts are signed off, we should generally ensure that the contract contains provisions:

- (a) Clearly setting out any fees payable and the bona fide services to be provided in return
- (b) Requiring third parties to keep proper books and records of our dealings with them and allowing a senior ***** representative access to those records from time to time
- (c) Requiring the third party to co-operate with us in any corruption investigations
- (d) Outlawing bribery and corruption and allowing for summary termination of the contract in the event that corruption by the third party, or its agents, is discovered
- (e) In some circumstances, we may require our business partners to undergo anti-corruption training. Group General Counsel will advise if this is needed, and it may then become a term of our contract with the third party.

11 Your responsibilities

- 11.1 You must ensure that you read, understand, and comply with this Policy.
- 11.2 The prevention, detection and reporting of bribery and other forms of corruption are the responsibility of all those working for us or under our control. All our personnel and those we do business with are required to avoid any activity that might lead to, or suggest, a breach of this Policy.
- 11.3 Any employee who breaches this Policy will face disciplinary action, which could result in dismissal for gross misconduct. We also reserve our right to terminate our contractual relationship with third parties if they breach this, Policy.

For any further information or to discuss any matter of concern, please contact one of the team as per below;

***** Investigation Practice

brendan.gillooly@*****.com

12 Record-keeping

- 12.1 We must keep financial records and have appropriate internal controls in place which will evidence the business reason for making payments to third parties.
- 12.2 Gifts valued at less than USD \$100 or the currency equivalent do not need to be recorded. Gifts valued in excess of USD \$100, or the currency equivalent must be rejected and reported to the Group General Counsel.
- 12.3 You must ensure all expenses claims relating to hospitality, gifts or expenses incurred to third parties are submitted in accordance with our Expenses Policy and specifically record the reason for the expenditure.
- 12.4 All accounts, invoices, memoranda and other documents and records relating to dealings with third parties, such as clients, suppliers, and business contacts, should be prepared and maintained with strict accuracy and completeness. No accounts must be kept "off-book" to facilitate or conceal improper payments.

13 How to raise a concern

You are encouraged to raise concerns about any issue or suspicion of malpractice at the earliest possible stage. This would include a situation in which you are offered a bribe by a third party, are asked to make one, or suspect that this may happen in the future, or believe that you are a victim of another form of unlawful activity.

If you are unsure whether a particular act constitutes bribery or corruption, or if you have any other queries, these should be raised with your line manager or the Group General Counsel by sending an email to groupgeneralcounsel@*****.com.

We have put in place a Whistle-Blowing Policy which will provide further guidance as to how reports

of malpractice or corruption can be made. However, you can always seek advice and guidance from your line manager or the Group General Counsel.

Whilst we would always encourage you to reveal your identity when making a report, in rare circumstances you may feel that this is not possible. The Whistle-blowing Policy will provide guidance on the making of anonymous reports.

14 Targets 2025

- Achieve a 100% completion rate for mandatory annual training on business ethics including our Global Business Conduct, Anti-Bribery, Anti-Money Laundering, and Sanctions policies for all employees.
- Zero instances of business ethics issues including bribery, fraud, corruption and money laundering within the organisation.

15 Who is responsible for the policy?

- 15.1 The Board of Directors has overall responsibility for ensuring this Policy complies with our legal and ethical obligations, and that all those under our control comply with it.

The Group General Counsel has primary and day-to-day responsibility for implementing this Policy, for monitoring its use and effectiveness, for record-keeping as set out above and for dealing with any queries on its interpretation. Management at all levels are responsible for ensuring those reporting to them are made aware of and understand this Policy and are given adequate and regular training on it. It will be reviewed at least annually to ensure it is relevant and up to date with current legislation.

If you have any suggested changes to this procedure, please notify:
